

The Explosive Substances (Amendment) Act, 2001

Source: <https://indiankanoon.org/doc/1630761/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[19](#)

[\]](#)

[Union of India - Act](#)

[The Explosive Substances \(Amendment\) Act, 2001](#)

[UNION OF INDIA](#)

[India](#)

[The Explosive Substances \(Amendment\) Act, 2001](#)

[Act 54 of 2001](#)

[Published on 1 January 2001](#)

[Commenced on 1 January 2001](#)

[\[This is the version of this document from 1 January 2001.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[An Act further to amend the Explosive Substances Act, 2001.](#)

[BE it enacted by Parliament in the Fifty- second Year of the Republic of India as follows:-](#)

[1.](#)

[Short title and commencement.-](#)

[\(1\)](#)

[This Act may be called the Explosive Substances \(Amendment\) Act, 2001 .](#)

[\(2\)](#)

[It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.](#)

[2.](#)

[Substitution of new sections for sections 2 to 5.-](#)

[In the Explosive Substances Act, 1908 \(](#)

6 of 1908

.) (hereinafter referred to as the principal Act), for sections 2 to 5, the following sections shall be substituted, namely:-'

2. Definitions.- In this Act,-

(a)

the expression "explosive substance" shall be deemed to include any materials for making any explosive substance; also any apparatus, machine, implement or material used, or intended to be used, or adapted for causing, or aiding in causing, any explosion in or with any explosive substance; also any part of any such apparatus, machine or implement;

(b)

the expression "special category explosive substance" shall be deemed to include research development explosive (RDX), penta erythritol tetra nitrate (PETN), high melting explosive (HMX), tri nitro toluene (TNT), low temperature plastic explosive (L PE), composition exploding (CE) 2, 4, 6 phenyl methyl nitramine or tetryl, OCTOL (mixture of high melting explosive and tri nitro toluene), plastic explosive kirkee- 1 (PEK- 1) and RDX TNT compounds and other similar type of explosive and a combination thereof and remote control devices causing explosion and any other substance and a combination thereof which the Central Government may, by notification in the Official Gazette, specify for the purposes of this Act.

3.

Punishment for causing explosion likely to endanger life or property.-

Any person who unlawfully and maliciously causes by-

(a)

any explosive substance an explosion of a nature likely to endanger life or to cause serious injury to property shall, whether any injury to person or property has been actually caused or not, be punished with imprisonment for life, or with rigorous imprisonment of either description which shall not be less than ten years, and shall also be liable to fine;

(b)

any special category explosive substance an explosion of a nature likely to endanger life or to cause serious injury to property shall, whether any injury to person or property has been actually caused or not, be punished with death, or rigorous imprisonment for life, and shall also be liable to fine.

4.

Punishment for attempt to cause explosion, or for making or keeping explosive with intent to endanger life or property.-

Any person who unlawfully and maliciously-

(a)

does any act with intent to cause by an explosive substance or special category explosive substance, or conspires to cause by an explosive substance or special category explosive substance, an explosion of a nature likely to endanger life or to cause serious injury to property; or

(b)

makes or has in his possession or under his control any explosive substance or special category explosive substance with intent by means thereof to endanger life, or cause serious injury to property, or to enable any other person by means thereof to endanger life or cause serious injury to property in India, shall, whether any explosion does or does not take place and whether any injury to person or property has been actually caused or not, be punished,-

(i)

in the case of any explosive substance, with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine;

(ii)

in the case of any special category explosive substance, with rigorous imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

5.

Punishment for making or possessing explosives under suspicious circumstances.-

Any person who makes or knowingly has in his possession or under his control any explosive substance or special category explosive substance, under such circumstances as to give rise to a reasonable suspicion that he is not making it or does not have it in his possession or under his control for a lawful object, shall, unless he can show that he made it or had it in his possession or under his control for a lawful object, be punished,-

(a)

in the case of any explosive substance, with imprisonment for a term which may extend to ten years, and shall also be liable to fine;

(b)

in the case of any special category explosive substance, with rigorous imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.'.

3. Amendment of section 7.-

In section 7 of the principal Act, for the words" Central Government", the words" District Magistrate" shall be substituted.

Related AI tags, queries and research notes

Translation